

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

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MILLER DORZIN,

Plaintiff,

**COMPLAINT &  
JURY DEMAND**

-against-

15 CV 2337

THE CITY OF NEW YORK,  
POLICE OFFICER DAVID RODRIGUEZ, SH# 13333  
POLICE OFFICER JOHN DOES #1-5,

Defendants.

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**PRELIMINARY STATEMENT**

1. This is a civil action seeking damages against the defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States and the State of New York.
2. The Plaintiff alleges that Defendants, while acting in their official capacities as police officers in the City of New York and as individuals, within the County of Kings, State of New York,
  - a. deprived plaintiff of his liberty without due process of law,
  - b. made unreasonable searches of the person and property of plaintiff,
  - c. ignored Plaintiff's requests to police to follow up on information that would have led to Plaintiff's immediate release,
  - d. subjected plaintiff to unnecessary detention and prosecution.
3. The Plaintiff alleges that defendant police officers thereby deprived plaintiff of his rights, privileges and immunities as guaranteed by the Fourth and Fourteenth

Amendments to the Constitution of the United States and under the laws of the State of New York.

### **JURISDICTION**

4. Plaintiff invokes the jurisdiction of this Court pursuant to 42 U.S.C. §1983, 28 U.S.C. §1331 and 28 U.S.C. §1367, the Fourth and Fourteenth Amendments to the United States Constitution, and laws of the State of New York.
5. Venue is laid within the United States District Court for the Eastern District of New York in that a) defendant City of New York is located within said district, and b), a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District of New York.

### **PARTIES**

6. Plaintiff Miller Dorzin (“Mr. Dorzin”) is a citizen and resident of Kings County, City and State of New York, and a citizen of the United States.
7. The City of New York (“CITY”) is a municipal corporation organized under the laws of the State of New York.
8. The City is authorized under the laws of the State of New York to maintain a police department, the NYPD.
9. The NYPD acts as the City’s agent in the area of law enforcement.
10. The law enforcement activities of the NYPD are funded partially by the federal government.
11. Defendant David Rodriguez, SH# 13333 (“Rodriguez”), was at all times material to this Complaint, a duly appointed police officer of the City of New York, a member of the New York City Police Department (NYPD).

12. At all times material to this Complaint, defendant Rodriguez acted toward the plaintiff under color of the statutes, ordinances, customs, and usage of the State of New York, City of New York, and the NYPD.
13. Rodriguez and all other individual defendants (JOHN DOES) were at all times material to this Complaint, duly appointed police officers of the City of New York, members of the NYPD and are sued in their individual and official capacities.
14. At all times material to this Complaint, defendants JOHN DOES acted toward the plaintiff under color of the statutes, ordinances, customs, and usage of the State of New York, City of New York, and the NYPD.
15. The true names and capacities of JOHN DOES are presently unknown to the Plaintiff. Plaintiff believes, and based upon such belief alleges, that each of said John/Jane Does have responsibility for the damages suffered by the Plaintiff. Leave of court will be sought to amend this complaint to include the true names and capacities of the JOHN DOES, and any other responsible person or entity as soon as such information becomes known to the Plaintiff
16. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

**FACTUAL ALLEGATIONS**

17. On January 24, 2014 at approximately 12:25 P.M., in front of 1402 Brooklyn Avenue, in Brooklyn, New York, defendants Rodriguez and 2 JOHN DOES initiated Police contact with Mr. Dorzin.
18. At approximately the above time and place, defendants Rodriguez and JOHN DOES, each assisted the other in initiating and maintaining police contact with the Plaintiff.
19. At or about said time, Mr. Dorzin was seated in the driver's seat of a car.
20. At said time said vehicle was loaned to Mr. Dorzin.
21. Said vehicle was not a stolen vehicle.
22. Said vehicle was parked, with its engine off.
23. At said time and place, defendants Rodriguez and JOHN DOES were dressed in plain clothing.
24. At approximately the above time and place, defendants Rodriguez and JOHN DOES approached Plaintiff while Plaintiff was seated in the car.
25. At approximately the above time and place, defendants Rodriguez and JOHN DOES requested to inspect Plaintiff Dorzin's drivers license.
26. At approximately that time and place, Plaintiff believed he was no longer free to leave.
27. At approximately the above time and place, Plaintiff complied with said request.
28. At approximately the above time and place, there were no restrictions upon Plaintiff Dorzin's driving privileges.
29. At approximately the above time and place, Defendants Rodrigues and JOHN DOES had no warrants issued or "wanted cards" for the arrest of Plaintiff Dorzin.
30. At approximately the above time and place, defendants Rodriguez and JOHN DOES ordered Plaintiff out of the aforesaid vehicle.

31. At approximately the above time and place, defendants Rodriguez and JOHN DOES ordered Plaintiff to go to the rear of the vehicle.
32. At approximately the above time and place, one or more of the defendants maintained physical control over and escorted Plaintiff Dorzin to the rear of the vehicle.
33. At approximately the above time and place, one of defendants Rodriguez and JOHN DOES searched the person of Plaintiff Dorzin.
34. Said search was without reasonable suspicion.
35. At approximately the above time and place, one or more of defendants Rodriguez and JOHN DOES searched the aforesaid vehicle.
36. Said search was without reasonable suspicion.
37. During the aforesaid search of the vehicle, one or more of defendants Rodriguez and JOHN DOES recovered a bankcard issued to a Donavon Graham.
38. Said bankcard was recovered from a cup holder inside the vehicle.
39. Upon recovery of said bankcard, one or more of the defendants handcuffed the Plaintiff.
40. During the aforesaid search of the Plaintiff, one of defendants Rodriguez and JOHN DOES recovered 2 bankcards issued to Plaintiff.
41. During the aforesaid search of the Plaintiff, one of the defendants told Plaintiff they were going to take Plaintiff and the bankcards to the precinct for further investigation to check the status of the bankcards.
42. During the aforesaid search of the Plaintiff on the street, one of the defendants told Plaintiff that if further investigation showed the cards to be “legitimate” they would let Plaintiff go free.

43. At approximately the above time and place, defendants Rodriguez and JOHN DOES, each assisting the other, kept Mr. Dorzin in police custody, without probable cause.
44. At approximately the above time and place, defendants Rodriguez and JOHN DOES, each assisting the other, kept Mr. Dorzin in police custody, without reasonable suspicion.
45. At approximately the above time and place, defendants Rodriguez and JOHN DOES seized Mr. Dorzin and removed him to the 67<sup>th</sup> Precinct Stationhouse.
46. Having no other legal or practical choice, Plaintiff did not resist the order to exit his vehicle, his search or the search of the vehicle, or being taken in for further investigation, yet these searches and seizures of his person and property were against his will.
47. During the ride to the 67<sup>th</sup> Precinct, Plaintiff asked Defendant police officers to try to contact Donavon Graham, the person whose name appeared on the card found inside the car, right then and there.
48. Defendants Rodriguez and JOHN DOES refused to attempt Plaintiff's suggestion.
49. Defendants detained Mr. Dorzin at a 67<sup>th</sup> Precinct Stationhouse jail cell for approximately seven and a half hours.
50. During those seven and a half hours, Rodriguez accused Plaintiff of having counterfeited the cards issued to Plaintiff.
51. During those seven and a half hours, Rodriguez accused Plaintiff of having used Donavon Graham's personal information to open up the account to which the bankcard provided access.

52. During those seven and a half hours, Plaintiff made several additional requests to defendants to contact the aforementioned Donavon Graham, all of which were refused.
53. During those seven and a half hours, Plaintiff made several additional requests to defendants to be permitted himself to contact the aforementioned Donavon Graham, all of which were refused.
54. At the 67th Precinct Stationhouse, defendants caused or permitted Plaintiff to be questioned about fraud by several other officers.
55. Thereafter, Rodriguez continued detention of the plaintiff and caused the plaintiff to be moved to “Central Booking” and await appearance before the Kings County Criminal Court.
56. Plaintiff remained in custody within Central Booking holding areas or cells for numerous hours.
57. Defendant Rodriguez and JOHN DOES were the sources of information from which official police reports were prepared in respect of the Plaintiff’s arrest and prosecution.
58. Said information was false.
59. Defendant Rodriguez and JOHN DOES knew said information was false.
60. Defendant Rodriguez and JOHN DOES were the sources of information from which official court documents such as Complaints were prepared and filed in respect of the Plaintiff’s arrest and prosecution.
61. Said information was false.
62. Defendant Rodriguez and JOHN DOES knew said information was false.

63. On or about January 25, 2014 or the early hours of January 26, 2014, Mr. Dorzin was caused to appear before the Honorable Robert Kalish, at Kings County Criminal Court and was arraigned by Complaint under docket number 2014KN005833.
64. Mr. Dorzin was charged with violating Penal Law section 190.81, Unlawful Possession of Personal Identification Information in the Third Degree, a class A misdemeanor, punishable by up to a year in jail, and Traffic Rule 4-08, Double Parking. Plaintiff pleaded Not Guilty.
65. The judge set bail at \$750 and adjourned the case for further proceedings to January 30, 2014.
66. Plaintiff did not have the bail money and was sent handcuffed to Rikers Island for detention.
67. Plaintiff did not desire or consent to this further detention.
68. At Rikers Island, Plaintiff was placed into a cell with numerous other prisoners.
69. During his detention at Rikers Island, Plaintiff was exceedingly frustrated and otherwise upset emotionally by his imprisonment for what he knew were false accusations and charges.
70. During his detention at Rikers Island, Plaintiff was cursed at and taunted by other prisoners, this too causing Plaintiff emotional distress and loss of well-being.
71. Plaintiff was locked up for approximately five days until his bail was paid.
72. On or about April 7, 2014, the said charges were dismissed.
73. On or about April 7, 2014, the prosecution stated it could not prove a case beyond a reasonable doubt.
74. Upon information and belief, prior to and including January 24, 2014, the City and its agents developed and maintained policies or customs, that fostered deliberate



indifference to the Fourth Amendment and other Constitutional rights of persons in New York City. Such policies enabled the violation of plaintiff's rights.

75. As a result of these policies and customs, the defendant officers believed that their actions would not be monitored properly by supervisory officers and that their misconduct would not be investigated or sanctioned, but would be tolerated.

76. Upon information and belief, prior to and including January 24, 2014, the City and its agents failed to develop and maintain sufficient policies or customs that could have prevented such violations to Plaintiff's Constitutional and New York State rights.

77. On April 11, 2014, Plaintiff served a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof on the Comptroller of the City of New York.

78. On June 3, 2014, the Plaintiff gave testimony before a Notary Public regarding his claim, pursuant to New York Municipal Law Section 50H.

79. Thereafter, said Comptroller for the City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof.

#### **CAUSES OF ACTION**

##### **80.42 USC §1983 AND EMOTIONAL DISTRESS (INTENTIONALLY**

**INFLECTED)**: Paragraphs 1 through 79 are incorporated herein by reference as though fully set forth.

81. Plaintiff alleges that Defendant Rodriguez and JOHN DOES acted knowingly in all of the descriptions of police conduct given in the foregoing paragraphs.

82. Plaintiff alleges that Defendant Rodriguez and JOHN DOES acted intentionally in all of the descriptions of police conduct given in the foregoing paragraphs.

83. Plaintiff alleges that Defendant Rodriguez and JOHN DOES acted in reckless disregard for the truth in all of the descriptions of police conduct given in the foregoing paragraphs.
84. Plaintiff alleges that the foregoing police conduct is extreme and outrageous in that such conduct violates expectations and norms attributed to our civilized community.
85. Plaintiff alleges that Defendants Rodrigues and JOHN DOES intended to cause Plaintiff severe emotional distress.
86. Plaintiff alleges that Defendants Rodrigues and JOHN DOES knew their conduct would cause Plaintiff severe emotional distress.
87. Plaintiff alleges that Defendants Rodrigues and JOHN DOES conduct caused Plaintiff severe emotional distress.
88. **42 USC §1983 AND FALSE ARREST AND IMPRISONMENT:** Paragraphs 1 through 87 are incorporated herein by reference as though fully set forth.
89. Plaintiff alleges that Defendant Rodriguez and JOHN DOES intended to confine Plaintiff.
90. Plaintiff alleges that he was conscious of the confinement.
91. Plaintiff alleges that he did not consent to the confinement.
92. Plaintiff alleges that the confinement imposed by Defendant Rodriguez and JOHN DOES was not privileged.
93. **42 USC §1983 AND INTENTIONAL HARM TO ANOTHER:** Paragraphs 1 through 92 are incorporated herein by reference as though fully set forth.
94. Plaintiff alleges that Defendants Rodrigues and JOHN DOES conduct was motivated by malice.

95. Plaintiff alleges that Defendants Rodrigues and JOHN DOES conduct was motivated by disinterested malevolence.

96. Plaintiff alleges that Defendants Rodrigues and JOHN DOES conduct was without excuse or justification.

97. Plaintiff alleges that while police conduct such as searches, seizures and arrests may otherwise be lawful, such conduct was not lawful in this case.

98. As a result of such conduct, Plaintiff alleges that he lost a number of days of freedom and lost income.

99. Plaintiff alleges that he has a right to be compensated specially therefore.

100. **42 USC §1983 AND MALICIOUS PROSECUTION:** Paragraphs 1 through 99 are incorporated herein by reference as though fully set forth.

101. Plaintiff alleges that Defendant Rodriguez and JOHN DOES were responsible for initiating the criminal action against the Plaintiff.

102. Plaintiff alleges that the criminal action against him was terminated favorably on April 7, 2014.

103. There was no probable cause to arrest the Plaintiff.

104. There was no probable cause to continue the detention of the Plaintiff.

105. Defendant Rodriguez and JOHN DOES acted maliciously by intentional misstatements in their reports.

106. Plaintiff alleges that Defendants Rodrigues and JOHN DOES conduct was motivated by disregard for the truth.

107. Defendant Rodriguez and JOHN DOES actions led to the damages claimed herein.

108. **42 USC §1983 AND ASSAULT**: Paragraphs 1 through 107 are incorporated herein by reference as though fully set forth.
109. Plaintiff alleges that Defendant Rodriguez and JOHN DOES used and abused their police authority.
110. Plaintiff alleges that Defendant Rodriguez and JOHN DOES initiated physical contact and restraint upon the Plaintiff.
111. Plaintiff alleges that Defendant Rodriguez and JOHN DOES conduct was intentional.
112. Plaintiff alleges that Defendant Rodriguez and JOHN DOES behavior caused him to fear physical violence.
113. Plaintiff alleges that Defendant Rodriguez and JOHN DOES conduct caused him to fear further restraint upon Plaintiff.
114. Plaintiff alleges that Defendant Rodriguez and JOHN DOES behavior was not privileged.
115. **42 USC §1983 AND BATTERY**: Paragraphs 1 through 113 are incorporated herein by reference as though fully set forth
116. Plaintiff alleges that Defendant Rodriguez and JOHN DOES initiated bodily contact with Plaintiff intentionally.
117. Plaintiff alleges that Defendant Rodriguez and JOHN DOES conduct was offensive.
118. Plaintiff alleges that Defendant Rodriguez and JOHN DOES conduct was not privileged.
119. **42 USC §1983 AND MUNICIPAL LIABILITY**: Paragraphs 1 through 118 are incorporated herein by reference as though fully set forth.

120. Prior to January 24, 2014, and via the NYPD, the City developed and maintained policies that fostered deliberate indifference to the Fourth Amendment rights of persons in New York City, and which caused the violation of plaintiff's rights.
121. Prior to January 24, 2014, and via the NYPD, the City developed and maintained customs that fostered deliberate indifference to the Fourth Amendment rights of persons in New York City, and which caused the violation of plaintiff's rights.
122. Prior to January 24, 2014, it was the policy and/or custom of the City through NYPD to tolerate such acts of misconduct in furtherance of policies such as "Stop, Question and Frisk", such tolerance becoming the actual policy.
123. Prior to January 24, 2014, it was the policy and/or custom of the City to supervise and train its security officers to enforce policies such as "Stop, Question and Frisk" aggressively.
124. Prior to January 24, 2014, the City did not require appropriate re-training of officers who were known to have engaged in unconstitutional conduct.
125. Prior to January 24, 2014, the City did not require appropriate re-training of officers who were suspected to have engaged in unconstitutional conduct.
126. As a result of the above described policies and customs, the defendant officers believed that their actions would not be monitored properly by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
127. These policies and customs demonstrated a deliberate indifference on the part of the policymakers of City and the NYPD to the rights of persons, and were a direct cause of the violations of plaintiff's rights alleged herein.
128. **MUNICIPAL NEGLIGENCE:** Paragraphs 1 through 127 are incorporated herein by reference as though fully set forth.

129. Upon information and belief, Plaintiff alleges that prior to January 24, 2014, Defendant Rodriguez and JOHN DOES demonstrated improper deportment to be employed by the NYPD.
130. Plaintiff alleges that prior to January 24, 2014, defendant City was negligent, careless and reckless in hiring and retaining as its employees the defendant officers.
131. As a direct result of the City's negligence in hiring and retaining as its employees the defendant officers, the Plaintiff suffered the damages elicited in the foregoing paragraphs.
132. As a direct result of the City's carelessness in hiring and retaining as its employees the defendant officers, the Plaintiff suffered the damages elicited in the foregoing paragraphs.
133. As a direct result of the City's recklessness in hiring and retaining as its employees the defendant officers, the Plaintiff suffered the damages elicited in the foregoing paragraphs.

**RELIEF DEMANDED**

134. Plaintiff petitions this Court to:

- a) Award damages to plaintiff against the defendants, jointly, severally, in their individual and official capacities;
- b) Award punitive damages against the individual defendants;
- c) Award costs of this action to the plaintiff;
- d) Award Attorney Fees to Plaintiff's Counsel pursuant to 42 U.S.C. 1988
- e) Award such other and further relief, as this Court may deem appropriate.

Dated: Brooklyn, New York  
April 23, 2015

Respectfully submitted,

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UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

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MILLER DORZIN,

Plaintiff,

15-CV-2337

v.

THE CITY OF NEW YORK,  
POLICE OFFICER DAVID RODRIGUEZ, SH# 13333  
POLICE OFFICER JOHN DOES #1-5,  
Defendants.

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COMPLAINT AND DEMANDS FOR JURY AND RELIEF

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